



Code: KL-AR
Revised/Reviewed: 7/21/21

Public Complaint Procedure

An individual or organization that alleges the public charter school is violating or has violated provisions of restraint or seclusion in Oregon Revised Statute (ORS) 339.285 - 339.303 or Oregon Administrative Rule (OAR) 581-021-0550 - 581-021-0570 (Restraint or Seclusion) is encouraged to initiate Step One of this complaint procedure and file a complaint with the administrator.

A parent or guardian of a student attending the public charter school, a staff member, a student or patron of the public charter school who wishes to express a concern should discuss the matter with the public charter school employee involved. If the concern remains unresolved, a complaint may be filed.

The Administrator/Principal: Step One:

A complainant may file a complaint with the administrator/principal clearly stating the nature of the complaint and a suggested remedy. A form is available, but is not required.

The administrator/principal shall investigate the complaint, confer with the complainant and the parties involved, prepare a report of the findings and conclusion, and provide a report in writing or in an electronic form to the complainant within five working days of receipt of the complaint.

The Board: Step Two

If the complainant is dissatisfied with the administrator/principal's findings and conclusion, the complainant may appeal the decision to the Board within five working days of receiving the administrator/principal's decision. The Board will review the findings and conclusion of the administrator/principal in a public meeting to determine what action is appropriate. The Board may use executive session if the subject matter qualifies under Oregon law. Appropriate action may include, but is not limited to, holding a hearing, requesting additional information, and adopting the administrator/principal's decision as the public charter school board's decision. All parties involved may be asked to attend such hearing for the purposes of making further explanations and clarifying the issues.

The complainant shall be informed of the Board's decision within 20 days from the hearing of the appeal to the Board. The Board's decision will address each allegation in the complaint and contain reasons for the Board's decision. The Board's decision will be final.

If the Board chooses not to hear the complaint the administrator/principal's decision is final.

The complaint procedure will not be longer than 90 days from the filing date of the original complaint with the administrator/principal. The timelines may be extended upon written agreement between the public charter school and the complainant.

Complaints against the director of operations will be filed with the administrator/principal. Complaints against the administrator/principal should be filed with the Board chair on behalf of the Board to the HCCS Board at board@hopeccs.org. The Board chair shall present the complaint to the Board in a Board meeting. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete, the results will be presented to the Board. The Board may use executive session if the subject matter qualifies under Oregon law. The Board shall decide, within 20 days, in open session what action, if any, is warranted. The written final decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Complaints against the Board as a whole or against an individual Board member should be referred to the Board chair on behalf of the Board to board@hopeccs.org. The Board chair shall present the complaint to the Board in a Board meeting. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete, the results will be presented to the Board. The Board shall decide, within 20 days, in open session what action if any, is warranted. The written final decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Complaints against the Board chair should be referred directly to the HCCS board (board@hopeccs.org) on behalf of the Board. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete the results will be presented to the Board. The Board shall decide, within 20 days, in open session what action, if any, is warranted. The written decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Appeal Process

A final decision reached by the public charter school board for a complaint that alleges a violation of ORS 339.285 - 339.303 or OAR 581-021-0550 - OAR 581-021-0570 (Restraint or Seclusion), ORS 659.852 (Retaliation), or applicable OAR Chapter 581, Division 22 (Division 22 Standards), is recognized as the final decision regarding this complaint by the Board of the Hope Chinese Charter School. A final decision may be appealed to the Oregon Department of Education under OAR 581-002-0003 - 581-002-0005.

Hope Chinese Charter School

COMPLAINT FORM

To: ☐ Employee* ☐ Administrator/Principal* ☐ Board chair ☐ Board vice chair

* Form available but is not required.

Person Making Complaint _____

Phone Number _____ Email _____

Nature of Complaint _____

Who should we talk to and what evidence should we consider? _____

Suggested solution/resolution/outcome: _____

Signature of Complainant: _____ Date: _____

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Office Use

Disposition of Complaint: _____

Signature: _____ Date: _____

cc: School Office